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Court

LAHORE HIGH COURT

Date

1974-12-23

Appeal No.

WRIT PETITION NO. 1594 OF 1972

Judge

MUHAMMAD AFZAL ZULLAH,J

Parties

MST. RAZIA BEGUM PETITIONER VERSUS MST. SARDAR BEGUM AND ANOTHER
(RESPONDENTS)

Lawyers

QMI MUHAMMAD SAHEM FOR PETITIONER. GHULAM MUHAMMI BKATIS SOV
RESPONDEATS NO», I TO 12.NEMO FOR RESPONDENT NO. 13.

Statutes

WEST PAKISTAN FAMILY COURT ACT(XXXV OF 1964) - SS. 5 AND 20 CONSTITUTION OF
PAKISTAN (1973) - ARTICLE 199

judgment he, however, observed in follows - "I might have remanded the case to settle the above points but now these have lost their importance because I have already held that the petition for maintenance allowance before the learned trial Court was not competent as the said Court was not invested with Magisterial powers under section 488, Cr. P. C. on the date when it was instituted. It was an inherent defect in the petition which cannot be cured under the law. I have also held that the respondent was not entitled to maintenance on account of the plea of repudiation. Under such circumstances the appeal must succeed. It is accordingly accepted and the Judgment and orders of the learned trial Court is set aside being without jurisdiction and the suit is dismissed." 3. The learned counsel for the petitioner has pointed out that even though in the judgment of the learned Family Judge the description of the Court was mistakenly given as 'administrative Civil Judge', the decree sheet clearly shows that the suit was decided by the learned trial Court as "Judge of Family Court." It has also been noted that the entire proceedings were conducted by the learned Judge, as 'Family Court,' therefore, the mere misdescription of the Court in the formal heading and ending parts of the judgment is inconsequential. I agree with the learned counsel that the misdescription of the Court is on account of an inadvertent mistake committed by the staff of the Family Judge. Looked at in this light, reliance of the learned counsel in *Tia Gul v. The State* (1) is fully justified. I accordingly hold that the trial of the suit for maintenance was held by the learned trial Court, the Judge, Family Court and not as an ordinary civil Court.

4. It is true that the learned Family Judge was not conferred Magisterial powers under section 488, Cr. P. C. till 1st of April 1966. It is also true that in the application for maintenance as initially filed, section 20 of the Family Courts Act read with section 488, Cr. P. C. was mentioned as the provision of law under which the application was filed, but it is not correct of the learned counsel for the respondent that the Family Court had no other capacity/jurisdiction to try the application except under section 488, Cr. P. C. What he contended before me was that even though the learned Family Judge had an independent jurisdiction under section 5 of the Family Courts Act read with item 3 of Schedule thereto, to grant maintenance to the petitioner and her son under general law it was the choice of the petitioner in the application filed by her which determined the forum of trial. He argued that if she had under section 5 read with item 3 of the Schedule chosen to seek relief the matter might have been different. In this behalf he also relied on *Settlement and Rehabilitation Commissioner, Hyderabad District, Karachi and another v. Matmu Khan and 3 others* (1) to contend that if at the time of entertaining the application the learned trial Court had jurisdiction, then subsequent conferment thereon of magisterial powers would not make its decision without jurisdiction.

5. The proceedings before the learned trial Court have not been properly comprehended by the learned First Appellate Court. As noted and discussed above, the learned trial Judge from the very beginning rather the very first act of entertaining the application by him, treated it as a suit within his jurisdiction as Family Court under section 5 read with item 3 of the Schedule.

Here it needs to be mentioned that the question of jurisdiction was raised before the learned Judge also, who observed that the argument on the basis of section 488, Cr. P. C. was erroneous as "Family Court has Jurisdiction to try the present suit. It has been provided for in section 5 of the Family Courts Act that the Court has jurisdiction to try each matters as have been provided for in the Schedule to the Act. One of the items mentioned in Schedule to the West Pakistan Family Courts Act, 1964 is (maintenance). In this view of the matter I hold that this Court has jurisdiction to try this suit." Thus the learned Family Judge, it appears, was conscious from the very first act of entertaining the application for maintenance till its decision as also throughout the proceedings that he was trying the same as Family Court under section 5 of the Family Courts Act treating the subject-matter as one of suits for maintenance under general law and not under section 488 of the Cr.

P. C. It cannot be denied that the learned Judge, notwithstanding the mention of a wrong provision of law in the heading of the application for maintenance, could entertain it under correct provision of law and within a jurisdiction which was available to him.

Learned counsel for the petitioner has rightly pointed out that the contents of the application including the demand therein for past maintenance beyond the date of application clearly show that in pith and substance the application was for grant of maintenance under general law, as according to him, under section 488 of the Cr. P. Cs, maintenance cannot be claimed beyond the date of application.

6. In the light of the above discussion, I hold that the trial Judge entertained the application for maintenance as a suit under general law and not under section 488 of the Cr. P. C, in his capacity as Family Court and not as a Magistrate or as a civil Court.

That being so and the trial having been properly held as if it was before a Family Court, the judgment and decree impugned before the learned First Appellate Court were passed with competence and jurisdiction. For this reason alone, the impugned appellate judgment which has treated the question of jurisdiction of the trial Court in a totally different perspective has acted without lawful authority. The impugned judgment and decree, therefore, are liable to be set aside as illegal and without lawful authority on this ground alone.

7» The other point which appears to have been finally determined by the learned Appellate Court relates to the so-called repudiation of marriage of Muhammad Shafi and its effect on question of maintenance. Learned counsel frankly stated that except for Baillies' Digest of Muhammadan Law, he is unable to cite any other authority in support of the proposition relied upon by the learned Additional District Judge that if a wife is 'repudiated' by her husband, any arrears of maintenance that may have accumulated after a decree of the Judge, become irrecoverable. To me it appears that the learned Judge has not properly appreciated the question of so-called repudiation of marriage in the circumstances of this case. He failed to notice that the act of this repudiation on the part of Muhammad Shafi preceded the decree in favour of the petitioner and substance of marriage. If there was any repudiation, its effect on rights of the wife and the son including those of maintenance became totally neutralised by the decree for declaration of subsistence of marriage passed by a competent Court in her favour. The maintenance was granted to her by a competent Court after the so-called repudiation and its annulment by the decree of civil Court. It would not be available to the husband to rely upon repudiation again when the same as above-noted had earlier been nullified. The principle applied by the learned Appellate Court would have had some relevance if after the grant of maintenance Muhammad Shafi would have divorced the petitioner on the assumption that she was his lawfully wedded wife. But this position was never taken either by Muhammad Shafi or by his successors-in-interest, the respondents in this petition. In the written statement filed in this Court as also during the arguments, the position taken is that "persistent denial on the part of Muhammad Shafi was sufficient to show that there was no marriage at all and it was in this context that the phrase repudiation was used by the learned Additional District Judge in his judgment. This denial of marriage by Muhammad Shafi is of no avail to the respondents after the decree for declaration of marriage passed in favour of the petitioner. And because the maintenance has been granted after the said decree, therefore, it is all the more necessary to emphasise that no amount of denial of marriage or repudiation of that type on the part of Muhammad Shafi would deprive the petitioner and her son of maintenance. The approach of the learned Additional District Judge in this behalf is unsustainable.

8. Then let us look at another aspect of this matter. The judgment (Annexure) of the learned trial Judge in the declaratory suit shows that Muhammad Shafi had made a statement before a criminal Court

admitting the factum of his niksk with the petitioner. The said learned Jodge did not attach any importance to this admission on the basis that Mohammad Shafi disowned It before him. In the appeal filed by Muhammad Shafi against this judgment, the learned Appellate Coart in the Judgment dated 6-6-1966 (Annezure however, did not follows the oourse adopted by that teamed trial Coart in this behalf and observed that "**In this context previbus admission on record in a judicial proceedings would conclude the matter again* the appellant." In writ jurisdiction such Hke observations In lodgments which an tour partes can be taken due note of. It will, therefore, be difltadt to assume that it was an absolutely clear case of repudiation of marriage by Muhammad Shafi so aa to affect the right of malntenaK* granted to the petition*! and he? son.

9. Ik the light of the above discussion, I have cone to the contusion that the learnt d First Appellate Court did not approach die question of repudiation in its true perspective, He failed to notice (he essential back* ground of relationship between the parties and thus acted without lawful authority in this behalf as well.

10. I have already held that the learned trial Judge had acted Il Family Court and had also conducted the proceedings treating the applica* tion for maintenance as suit under general law and thus fatting under section S of the Family Courts Act and not under section 488 of the Cr, P. C. Therefore, I do not consider it necessary to examine the alternative argameat advanced by the learned couossI for the petitioner, namely, that substantial proceedings during the trial took place after the conferment of Magisterial power section 448 of the Cr. P. C. on the learned Presiding Jodgi and, therefore, for that reason, the judgment and decree passed by him In 1070 would be with competence even if it were to be assumed that the proceedings were under section 488, Cr. P. C, It is not necessary to go into the details of this argument.

11. It Is also to be observed that in view of the findinp on the two main questions which were made the baiii of the operative part of the impugned appellate judgment, I do not consider it necessary to decide the other questions of merits namely ; whether Muhammad Shafi was not afforded sufficient opportunity to crosfr-exatnine the petitioner aad/or to produce evidence in rebuttal or for that matter whether he suffered any prejudice in so far as the question of rate of maintenance is concerned. The impugned appellate judgment is liable to be set aside on two main ground* already discussed, as being without lawful authority and the case needs to be remanded to the learned District Judge for decision afresh of the appeal.

1, therefore, accept this petition and order accordingly. The case is remanded to the learned District Judge who shall decide the appeal himself in acsordanee wish law. These shall be no order as to costs.

s. a. a. ' Petition allowed, Case remanded.

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